

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.						1. REQUISITION NUMBER		PAGE 1 OF 27			
2. CONTRACT NUMBER		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER N6852026Q10230001		6. SOLICITATION ISSUE DATE 01 Apr 2026			
7. FOR SOLICITATION INFORMATION CALL:		a. NAME GREGORY FABRICANTE				b. TELEPHONE NUMBER (No collect calls) 555-555-5555		8. OFFER DUE DATE/ LOCAL TIME 16 Apr 2026 02:00 PM			
9. ISSUED BY CODE N68520 FLEET READINESS CENTER ATTN CHIEF OF STAFF, 47038 MCLEOD ROAD, BLDG 448 PATUXENT RIVER, MD 20670 UNITED STATES GREGORY FABRICANTE, Email: gregory.b.fabricante2.civ@us.navy.mil Telephone: 555-555-5555						10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ 8(A) 500					
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☒ FOR QUOTE ☐ INVITATION ☐ FOR BID ☐ PROPOSAL (RFQ) (IFB) (RFP)					
15. DELIVER TO CODE See Continuation				16. ADMINISTERED BY CODE							
17a. CONTRACTOR/OFFEROR CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY CODE							
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM							
19. ITEM NUMBER		20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
		See Continuation									
		(Use Reverse and/or Attach Additional Sheets as Necessary)									
25. ACCOUNTING AND APPROPRIATION DATA See Continuation						26. TOTAL AWARD AMOUNT (For Government Use Only)					
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 ARE NOT ATTACHED						☒ ARE ☐ ARE NOT ATTACHED					
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:							
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)							
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)				31c. DATE SIGNED			

Solicitation/Contract Form Continuation

Heat Treat Oven

Points of Contact:

Contract Specialist
Brandon Fabricante
gregory.b.fabricante2.civ@us.navy.mil

Procuring Contracting Officer
Beverley Rhamdeow
beverley.s.rhamdeow.civ@us.navy.mil

Amendment 0001:

The Purpose of this amendment is as follows:

1. Revise the Statement of Work, Paragraphs 3.3.1, 3.1.2, 3.12.4, 3.12.5 and 3.12.6 to provide clarification based on the questions received.
2. Add FAR Clauses 52.225-1 and 52.225-2.
3. Extend the Submission date to 16 April 2026; 2 p.m. EST.

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Heat Treat Oven In accordance with section 3.0 of the Statement of Work. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	1	Each		
0002	Technical Data. Two (2) electronic copy(s). (Contract Data Requirement List CDRL A001). NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	2	Lot		
0003	Shipping Pricing Arrangement: Firm Fixed Price	1	Lot		

Continuation of Description

1.0 Scope.

1.1 Background. This AMS2750H compliant Heat Treat Oven is required due to a heavy increase in demand for fabricated repair parts requiring heat treat driven by an ageing F/A-18 airframe and new 10K requirements. These parts and fittings are either on extended back order or not available through the supply system and must be fabricated in-house to maintain aircraft readiness. Current processes in place for outside heat treat procurement cannot meet this demand efficiently. The Heat Treat Oven will significantly improve throughput and control of the process, reduce turnaround time and directly support mission readiness. By fabricating and heat treating hard to get or obsolete parts we can save time, enhance flexibility, increase readiness, and reduce costs.

1.2 The primary objective is for a Firm-Fixed-Price procurement and delivery of a complete, fully functional, and ready-to-operate heat treat oven with an integrated quench tank system. The contractor shall provide all labor, supervision, tools, equipment, transportation, and any other items necessary to furnish and deliver this equipment.

2.0 Applicable Documents. STANDARDS - FEDERAL

FED-STD-H28B: Screw Thread Standards for Federal Service

U.S Department of Labor, Occupational Safety and Health Administration (OSHA)

29 CFR 1910 Vol. 5: General Industry, OSHA Safety and Health Standards

(Application for copies should be addressed to the OSHA Publications Superintendent of Documents P.O. Box 37535 Washington, D.C. 20013-7535)

Environmental Protection Agency (EPA)

40 CFR 761: Polychlorinated Biphenyls (PCBs) Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions

(Application for copies should be addressed to the EPA Ariel Rios Building 1200 Pennsylvania Avenue, N.W. Washington, DC 20460)

National Fire Protection Association (NFPA)

NFPA 86: Ovens and Furnaces (2023 edition)

NFPA 79: Electrical Standard for Industrial Machinery (2024)

(Applications for copies should be addressed to the National Fire Protection Association, ATTN: Support Services, 11 Tracy Drive, Avon, MA 02322)

3.0 Requirements. The Contractor shall provide a complete, fully functional, and ready-to-operate Heat Treat Oven meeting the following minimum requirements.

3.1 General Characteristics. The required Heat Treat Oven shall meet or exceed the characteristics detailed herein.

3.1.1 Heat Source. Heat will be provided by electricity through a 460V, 3 Phase, 60 Hertz power source.

3.1.2 Temperature Uniformity. Oven must meet AMS 2750 Class 1 standards of +/- 5F.

3.2 Design. The item offered shall be new and a current commercially available model. A current model is defined as the manufacturer's currently produced model which, on the date this solicitation is issued, has been designed, engineered, sold, or is being offered for sale through advertisements or manufacturer's published catalogue or brochures. The machine shall include all components, parts, and features necessary to meet the performance requirements specified herein. All parts subject to wear, breakage or distortion shall be accessible for adjustment, replacement, and repair.

3.2.1 Controls. All operating controls shall be located convenient to the operator's normal workstation.

3.2.2 Safety Guarding. Covers, guards, and other safety devices shall be provided per ANSI B11.0-2023 standards. The safety devices shall not interfere with the operation of the machine. The safety devices shall prevent unintentional contact with the guarded part, and shall be easily removed to facilitate inspection, maintenance, and repair of the parts.

3.2.3 Mercury Restrictions. The machine shall not contain mercury or mercury compounds nor be exposed to free mercury during manufacture with the exception of fluorescent lighting where required.

3.2.4 Asbestos Restriction. Asbestos and materials containing asbestos shall not be used on or in the machine.

3.2.5 Lead. Lead and materials containing lead shall not be used on or in the machine with the exception to radiation, cladding, and lead solder in circuits.

3.2.6 Use of Polychlorinated Biphenyl (PCB). The use of polychlorinated biphenyl (PCB) on or in the equipment is prohibited. The machine shall be considered PCB free providing certification to be verified containing less than 5 parts per million (<5ppm) in accordance with 40 CFR part 761.

3.2.7 Environmental Protection. Under the operating, service, transportation, and storage conditions described herein, the machine shall not emit materials hazardous to the ecological system as prohibited by Federal, state, or local statutes in effect at the point of installation.

3.2.8 Replacement Parts. All parts subject to replacement shall be manufactured to definite dimensions and tolerances. Replacement parts shall be interchangeable without requiring modification. Replacement parts are those that are subject to wear or failure such as gears, bearings, shafts, feed screws, drive belts, pumps, and seals. Electrical replacement parts shall include but not be limited to motors, relays, fuses, switches, magnetics, pushbuttons, light bulbs, braking mechanisms, and solid-state devices. Tooling and accessories normally supplied as standard items shall also be considered replacement parts.

3.3 Fabrication. The machine shall be fabricated of parts that are new, without defects, and free of repairs. The structure shall withstand all forces encountered during operation of the machine to its maximum rating and capacity without distortion.

3.3.1 Casting and Forgings. All castings and forgings shall be free of defects, scale, and mismatching. No processes such as welding, peening, plugging, filling with solder or paste shall be used for reclaiming any defective part.

Fastening Devices. All screws, pins, bolts, and other fasteners shall be installed to prevent unintentional loosening. Fastening devices subject to removal or adjustment shall not be permanently installed.

3.3.2 Threads. All threaded parts used on the machine and its related attachments and accessories shall conform to FED-STD-H28B and the applicable "Detailed Standard" section referenced therein or equivalent ISO/DIN/JIS standards.

3.3.3 Surfaces. All surfaces shall be clean and free of harmful or extraneous materials. All edges shall be either rounded or beveled unless sharpness is required to perform a necessary function.

3.3.4 Welding, Brazing, or Soldering. Welding, brazing, or soldering shall be employed only where specified in the original design. None of these operations shall be employed as a repair measure for any defective part.

3.3.5 Painting. All paint shall be free of lead and hexavalent chromium.

3.4 Size and Capacity.

3.4.1 Chamber. 24" H x 24" W x 48" L

3.4.2 Voltage. 460V, 3 Phase, 60 Hertz

3.4.3 Temp. 1200 F

3.5 Shell. Structural steel and 12-gauge sheet steel shall be used for the fabrication of the shell.

3.6 Insulation. Multilayered combination of lightweight insulating firebrick and mineral wool. A minimum of 6.5" of insulation shall be used for the chamber.

3.7 Doors. A vertical lift door that is air operated with insulated fire brick or equivalent. Door lift shall be activated by a foot treadle. A door switch shall automatically shut o power to the heating coils when door is in open position.

3.8 Motor and Fan. Heavy duty motor, V-belt driven high volume fan assembly.

3.9 Liner. Reinforced 30 stainless steel liner angle iron constructed and lined with a stainless sheet steel interior located on both side and rear walls isolates the heating elements and fan from the work chamber.

3.10 Atmosphere Ports.

3.10.1 Atmosphere Inlet Port

3.10.2 Adjustable Exhaust Port

3.10.3 Temperature Uniformity Survey (TUS) Port

3.10.4 System Accuracy Test (SAT) Port

3.11 Power and control System.

3.11.1 Power Controls. The power controls shall be mounted in an enclosure on the furnace and contain the following items:

3.11.1.1 Magnetic contactors.

3.11.1.2 460 volt to 115 volt control transformer.

3.11.1.3 Set of terminal blocks, instrument fuses and power connection terminals.

3.11.1.4 All components shall be mounted on a removable sub panel for easy access.

3.11.2 Temperature Controls. The temperature controllers shall be mounted in a separate NEMA 1 panel attached to the furnace and shall contain the following items:

3.11.2.1 Videographic Recorder and Programmable Controller - Paper-less recording combined with PID Control in a compact to include a high accuracy universal input channel, relay outputs, ethernet port and USB Port.

3.11.2.2 High limit digital controller with separate thermocouple and contactor for automatic furnace shut down in the event of a high temperature excursion.

3.11.2.3 Control switches and pilot lights.

3.11.2.4 Non resetting time totalizing meter with a range of 0 to 100,000 hours.

3.11.3 Thermocouple. Two (2) 14 gauge Type (K) thermocouple assemblies for control and high limit.

3.11.4 Atmosphere Flowmeter. One (1) calibrated for Nitrogen and one (1) calibrated for Argon.

3.11.5 Heating Elements. The type of heating element that shall be acceptable in the chamber is a heavy gauged coiled wire mounted on ceramic tubes.

3.11.6 Regulator. Regulator shall be capable of reducing atmosphere pressure from high pressure tanks to low pressure suitable for connection to atmosphere inlet.

3.11.7 Fusible Disconnect Switch. A fusible disconnect switch shall be mounted on the side of the furnace for shutting o all power to the furnace.

3.12 Quench System.

3.12.1 Roller Hearth. The roller(s) shall be fabricated with stainless steel with a 2" diameter and 36" diameter work surface. The roller(s) shall be captivated at each end of a stainless steel rack which shall be pinned to the floor of the chamber.

3.12.2 Quench Tank. 304 stainless steel shall be used for the fabrication of the quench tank with a mating hearth height set of 2" diameter stainless steel rollers located above the tank.

3.12.3 Quench Tank rack. The rack shall be connected to two (2) air cylinders to lower the rack into the quench water. A push button shall activate the air cylinder(s). An electric driven propeller mixer will be in the tank to circulate the water.

3.12.4 Load Basket. 309 stainless steel shall be used for the fabrication of the load basket with an approximate dimension of 32" W x 44" Deep x 10" Tall. Max load weight requirement of 50 lbs.

3.12.5 Time to Quench (quench delay). Minimum delay 5 seconds to maximum delay 15 seconds.

3.12.6 Material Loading Method. Material will be handloaded and requires no extra area for loading equipment.

3.13 Marking on Instruments, Control Panels, and Plates. All words on plates shall be in the English language. Characters shall be engraved, etched, embossed, or stamped in boldface on a contrasting background. All plates shall be corrosion resistant.

3.13.1 Identification Marking of Military Property. An Item Unique Identification Marking (IUID) shall be provided in accordance with MIL-STD-130N and all applicable documents within the standard with Machine Readable Information (MRI) for item identification marking and automatic data capture. The application of Human Readable Information (HRI) shall be used in combination with MRI and free text. At a minimum this tag shall contain the information listed in paragraph 3.5.2 Nameplate.

3.14 Technical Data. Two (2) electronic copy(s) of technical data shall be provided with the machine (Contract Data Requirement List CDRL A001). Each electronic copy shall be submitted to the technical point of contact. All copies of technical data shall be legible and written in the English language. Technical Data shall include the following:

3.14.1 Technical data shall contain technical information, specifications, instructions for the operation, maintenance of the machine, consumables and expendables information (such as oils, fluids, grease, filters...), and recommended spare parts list.

3.14.2 Factory service and operator manuals for the type and model of the machine being purchased.

3.14.3 Diagnostic procedures for isolating and correcting faults. Procedures shall be included in the service manuals for recalibrating and performing operational checks to ensure proper operation of any replaced parts, as required.

3.14.4 Preventative and predictive maintenance tasks and show recommended intervals of tasks.

4.0 Quality Assurance.

4.1 Certificate of Conformance. The Government requires that the contractor furnish a COC in accordance with FAR clause 52.246 - 15 upon the procurement of products or services. A COC is required to be furnished with the Heat Treat Oven upon shipment.

4.2 Inspection / Acceptance

4.2.1 The Government will inspect material upon receipt of the Heat Treat Oven. If the Heat Treat Oven is determined to be damaged, the technical point of contact will contact the contractor to discuss any identified issues. The contractor shall be required to correct/repair the rejected equipment at the contractor's expense. When the material is fully inspected and determined operational, the Government will provide acceptance of the material.

Requirements

NEW Contract Heat Treat Oven for Organization HJ00000-FRC SE FY: 2026, AMS: N68520-26-SIMACQHJ00000-0122

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: The Contractor shall ship/deliver (1) Heat Treat Oven to FRCMA Team: FRCMA NAS Oceana Attn: Wayne J. Bebout; PH: 757-433-9102 766 B Ave HGR 200, Rm. 163 Virginia Beach, Virginia 23460-2226 DoDAAC: N69107 CountryCode: USA FRC MIDATLANTIC AIRCRAFT DEPARTMENT NAS OCEANA HANGAR 200 ROOM 109, VIRGINIA BEACH VA 23460 VIRGINIA BEACH, VA 23460 UNITED STATES Wayne J. Bebout, Production Division Oceana Branch Head Email: wayne.j.bebout.civ@us.navy.mil Telephone: 757-433-9102
0002	Inspection and Acceptance Location Both Destination Instructions: The Contractor shall ship/deliver (1) Heat Treat Oven to FRCMA Team: FRCMA NAS Oceana Attn: Wayne J. Bebout; PH: 757-433-9102 766 B Ave HGR 200, Rm. 163 Virginia Beach, Virginia 23460-2226 DoDAAC: N69107 CountryCode: USA FRC MIDATLANTIC AIRCRAFT DEPARTMENT NAS OCEANA HANGAR 200 ROOM 109, VIRGINIA BEACH VA 23460 VIRGINIA BEACH, VA 23460 UNITED STATES Wayne J. Bebout, Production Division Oceana Branch Head Email: wayne.j.bebout.civ@us.navy.mil Telephone: 757-433-9102
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UNITED STATES

Wayne J. Bebout, Production Division Oceana Branch Head
Email: wayne.j.bebout.civ@us.navy.mil
Telephone: 757-433-9102

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Schedule From date of lead time event to delivery 30 Calendar Days Date of Award	1 Each	Ship To DoDAAC: N69107 CountryCode: USA FRC MIDATLANTIC AIRCRAFT DEPARTMENT NAS OCEANA HANGAR 200 ROOM 109, VIRGINIA BEACH VA 23460 VIRGINIA BEACH, VA 23460 UNITED STATES Wayne J. Bebout, Production Division Oceana Branch Head Email: wayne.j.bebout.civ@us.navy.mil Telephone: (757) 433-9102
0002	Delivery Schedule From date of lead time event to delivery 30 Calendar Days Date of Award	2 Lot	Ship To DoDAAC: N69107 CountryCode: USA FRC MIDATLANTIC AIRCRAFT DEPARTMENT NAS OCEANA HANGAR 200 ROOM 109, VIRGINIA BEACH VA 23460 VIRGINIA BEACH, VA 23460 UNITED STATES Wayne J. Bebout, Production Division Oceana Branch Head Email: wayne.j.bebout.civ@us.navy.mil Telephone: (757) 433-9102
0003	Delivery Schedule From date of lead time event to delivery 30 Calendar Days Date of Award	1 Lot	Ship To DoDAAC: N69107 CountryCode: USA FRC MIDATLANTIC AIRCRAFT DEPARTMENT NAS OCEANA HANGAR 200 ROOM 109, VIRGINIA BEACH VA 23460 VIRGINIA BEACH, VA 23460 UNITED STATES Wayne J. Bebout, Production Division Oceana Branch Head Email: wayne.j.bebout.civ@us.navy.mil Telephone: (757) 433-9102

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.225-1	Buy American-Supplies (Deviation 2026-O0038)	Feb 2026		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.222-35	Equal Opportunity for Veterans.	Jun 2020		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

As prescribed in 211.274-5(a), use the following clause:

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
_____	_____
_____	_____
_____	_____

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
_____	_____
_____	_____
_____	_____

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**

- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions*. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing*. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access*. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training*. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission*. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice and Receiving Report

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N64142</u>
Issue By DoDAAC	<u>N68520</u>
Admin DoDAAC	<u>N68520</u>
Inspect By DoDAAC	<u>N69107</u>
Ship To Code	<u>N69107</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N69107</u>
Service Acceptor (DoDAAC)	<u>N69107</u>
Accept at Other DoDAAC	<u>N/A</u>

LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Wayne J. Bebout, wayne.j.bebout.civ@us.navy.mil, 757-433-9102

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.232-25	Prompt Payment.	Jan 2017		
52.202-1	Definitions.	Jun 2020		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.222-3	Convict Labor.	Jun 2003		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.233-1	Disputes.	May 2014		
52.243-1	Changes-Fixed-Price.	Aug 1987		
52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form).	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.246-15	Certificate of Conformance.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

GTXT.201-9500 TECHNICAL POINT OF CONTACT (TPOC) (NAVAIR)

(Apr 2022)

(a) The Technical Point of Contact (TPOC) for this contract is: [Wayne J. Bebout, wayne.j.bebout.civ@us.navy.mil, 757-433-9102]

(b) This individual is not a Contracting Officer nor a Contracting Officer's Representative (COR)/Task Order COR (TOCOR) and has no authority to make changes, verbally or otherwise, to the existing contract or order. Further, no authority has been delegated to this individual by the Procuring Contracting Officer (PCO).

(c) The contractor may use this TPOC for technical questions related to the existing contract or order. Also, as a representative of the requiring activity, the TPOC may perform or assist in such areas as: base access forms, security related issues, IT access requirements, Contractor Performance Assessment Reporting System (CPARS), clarification of technical requirements, and statement of work inquiries.

(d) The contractor shall immediately notify the PCO in writing if the contractor interprets any action by the TPOC to be a change to the existing contract.

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	CDRL A001 Heat Treat Oven	Contract Data Requirements List (CDRL)		01 Apr 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

This is a combined synopsis/solicitation conducted in accordance with Federal Acquisition Regulation (FAR) Part 12 to solicit a competitive commercial award for a firm fixed price (FFP) commercial service contract for the purchase of one (1) Heat Treat Oven with integrated Quench Tank, PSC Code: 3424 - Metal Heat Treating and Non-Thermal Treating Equipment, NAICS Code: 333994 - Industrial Process Furnace and Oven Manufacturing, to heat treat various aircraft components. The place of performance will be located at Fleet Readiness Center Mid Atlantic (FRCMA), NAS Oceana, Virginia Beach, Virginia.

Instructions:

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services SEP 2023. Offerors must comply with all instructions contained herein.

To be considered for award, the Offeror shall submit a complete quote package that conforms to the requirement outlined in section 3.0 in the Statement of Work.

Closing Date: Quotations must be received no later than 2:00 pm, Eastern Standard Time on 13 April 2026. Quotations received after that date and time will not be accepted or considered for award.

The entire quotation must be contained in a single e-mail that does not exceed 5 megabytes including attachments, if any. If the specified subject line is not included, the e-mail may not get through the e-mail filters. Also be advised that .zip or .exe files are NOT allowable attachments and may be deleted. If sending attachments with email, ensure only .pdf, .doc, .docx, .xls or .xlsx documents are sent. Upon award, any provisions that were in the RFQ (including representations and certifications) will be removed from the award document.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation)

(Feb 2026)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Technical

Price

The Government intends to award a contract to the responsible offeror whose offer, conforming to the solicitation, is the most advantageous to the Government on the basis of Lowest Price Technically Acceptable (LPTA). To be eligible for award, a proposal must be rated as "Acceptable" for the non-price factor.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

An award, if any, will be made to the responsible offeror who submits a quotation that conforms to the requirements of N6852025Q1023 RFQ, is the most advantageous to the Government on the basis of Lowest Price Technically Acceptable (LPTA). To be eligible for award, a proposal must be rated as "Acceptable" for the non-price factor and the Evaluation Factors as follows:

Factor 1 - Technical Acceptability: Technical Acceptability will be evaluated on an Acceptable/Unacceptable basis. To be rated Acceptable, the Offeror's quote must:

Conforms to the requirements of N6852025Q1023 RFQ and Complies with the requirements and terms and conditions stated in the Performance Work Statement (PWS).

Factor 2 - Price: Price will be evaluated based on the total combined price, for reasonableness in accordance with FAR 12.203. Award will be made to the offeror providing the Lowest Price Technically Acceptable (LPTA).

The Government reserves the right to award without discussions or make no award at all depending upon (1) the quality of quotations received and (2) whether proposed prices are determined to be fair and reasonable. The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs. Offerors shall complete and include in quotations all representations and certifications, as well as all fill-in provisions and clauses, contained within this RFQ. Additionally, quotations that cannot comply with all terms and conditions in the RFQ, shall not apply.

IMPORTANT NOTICE TO ALL CONTRACTORS: All prospective awardees are required to register in the System for Award Management (SAM) and maintain active registration during the life of the contract. SAM can be accessed at <https://www.sam.gov>.

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.223-23	Sustainable Products and Services.	May 2024		
52.225-18	Place of Manufacture.	Aug 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.225-2 Buy American Certificate. (Oct 2022)

BUY AMERICAN CERTIFICATE (OCT 2022)

- (a)
- (1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.
- (2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".
- (3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).
- (4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(b) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes /no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(b) [List as necessary]

(c) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)